

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 2406
(Reference to House engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 11-594, Arizona Revised Statutes, is amended to
3 read:

4 11-594. Powers and duties of county medical examiner

5 A. The county medical examiner or alternate medical examiner shall
6 direct a death investigation and, on a determination that the
7 circumstances of the death provide jurisdiction pursuant to section
8 11-593, subsection B, shall:

9 1. Take charge of the dead body.

10 2. Determine if an autopsy is required.

11 3. Certify to the cause and manner of death following completion of
12 the death investigation, reduce the findings to writing and promptly make
13 a full report on forms prescribed for that purpose.

14 4. Have subpoena authority for all documents, records and papers
15 deemed useful in the death investigation.

16 5. Execute a death certificate provided by the state registrar of
17 vital statistics indicating the cause and the manner of death for those
18 bodies for which a death investigation has been conducted and jurisdiction
19 is assumed.

20 6. Give approval for cremation or alkaline hydrolysis of a dead
21 body after a death investigation and record the approval on the death
22 certificate.

23 7. Notify the county attorney or other law enforcement authority
24 when death is found to be from nonnatural causes.

25 8. Carry out the duties specified under section 28-668.

26 9. Carry out the duties specified under title 36, chapter 7,
27 article 3.

28 10. Provide a blood sample from a deceased person for the purpose
29 of communicable disease testing pursuant to sections 13-1210 and 36-670 if
30 the blood is available and the collection or release will not interfere
31 with a medical examination, autopsy or certification of death.

32 11. Observe all policies adopted by the board of supervisors
33 regarding conflicts of interest and disclosure of noncounty employment.

34 B. The county medical examiner or alternate medical examiner may:

35 1. Assign to a medical death investigator or other qualified
36 personnel all aspects of a death investigation except performing
37 autopsies.

38 2. Authorize forensic pathologists to perform examinations and
39 autopsies. The medical examiner or alternate medical examiner may

1 authorize medical students or residents and fellows in pathology training
2 to perform autopsies under the supervision of a licensed physician who is
3 board certified in forensic pathology, pursuant to procedures adopted by
4 the county medical examiner or alternate medical examiner. Authorization
5 and the amount to be paid by the county for pathology services are subject
6 to approval of the board of supervisors.

7 3. Authorize pathologist assistants to assist with performing
8 autopsies under the direct supervision of a licensed physician who is
9 board certified in forensic pathology, pursuant to procedures adopted by
10 the county medical examiner or alternate medical examiner. A pathologist
11 assistant may not certify a cause of death or independently perform an
12 autopsy.

13 4. Delegate any power, duty or function, whether ministerial or
14 discretionary, vested by this chapter in the medical examiner or alternate
15 medical examiner to a person meeting the qualifications prescribed in this
16 chapter who is employed by or who has contracted with the county to
17 provide death investigation services. The medical examiner or alternate
18 medical examiner shall be responsible for the official acts of the person
19 designated pursuant to this section and shall act under the name and
20 authority of the medical examiner or alternate medical examiner.

21 5. Authorize the taking of organs and tissues as they prove to be
22 usable for transplants, other treatment, therapy, education or research if
23 all of the requirements of title 36, chapter 7, article 3 are met. The
24 medical examiner or alternate medical examiner shall give this
25 authorization within a time period that allows a medically viable
26 donation.

27 6. Authorize licensed physicians, surgeons or trained technicians
28 to remove parts of bodies provided they follow an established protocol
29 approved by the medical examiner or alternate medical examiner.

30 7. Limit the removal of organs or tissues for transplants or other
31 therapy or treatment if, based on a review of available medical and
32 investigative information within a time that allows a medically viable
33 donation, the medical examiner or alternate medical examiner makes an
34 initial determination that their removal would interfere with a medical
35 examination, autopsy or certification of death. Before making a final
36 decision to limit the removal of organs, the medical examiner or alternate
37 medical examiner shall consult with the organ procurement organization.
38 After the consultation and when the organ procurement organization
39 provides information that the organ procurement organization reasonably
40 believes could alter the initial decision and at the request of the organ
41 procurement organization, the medical examiner or alternate medical
42 examiner shall conduct a physical examination of the body. If the medical
43 examiner or alternate medical examiner limits the removal of organs, the
44 medical examiner or alternate medical examiner shall maintain
45 documentation of this decision and shall make the documentation available
46 to the organ procurement organization.

47 C. A county medical examiner or alternate medical examiner shall
48 not be held civilly or criminally liable for any acts performed in good

1 faith pursuant to subsection A, paragraph 10 and subsection B, paragraphs
2 5, 6 and 7 of this section.

3 D. If a dispute arises over the findings of the medical examiner's
4 report, the medical examiner, on an order of the superior court, shall
5 make available all evidence and documentation to a court-designated
6 licensed forensic pathologist for review, and the results of the review
7 shall be reported to the superior court in the county issuing the order.

8 E. For providing external examinations and autopsies pursuant to
9 this section, the medical examiner may charge a fee established by the
10 board of supervisors pursuant to section 11-251.08.

11 F. The county medical examiner or alternate medical examiner is
12 entitled to all medical records and related records of a person for whom
13 the medical examiner is required to certify cause of death.

14 G. NOTWITHSTANDING SECTION 11-597.02 AND TITLE 39, CHAPTER 1,
15 AUTOPSY PHOTOGRAPHS, VIDEO RECORDINGS AND DIGITAL IMAGES DEPICTING THE
16 BODY OF A DECEASED MINOR ARE CONFIDENTIAL AND ARE NOT SUBJECT TO PUBLIC
17 DISCLOSURE.

18 H. RECORDS PROHIBITED FROM DISCLOSURE PURSUANT TO SUBSECTION G OF
19 THIS SECTION MAY BE RELEASED ONLY TO THE FOLLOWING:

20 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR.

21 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED
22 MINOR.

23 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR OR COURT FOR THE PURPOSE OF
24 AN INVESTIGATION OR CRIMINAL PROCEEDING.

25 4. A PERSON WHO IS AUTHORIZED BY A COURT ON A FINDING OF GOOD
26 CAUSE.

27 Sec. 2. Section 13-4434, Arizona Revised Statutes, is amended to
28 read:

29 13-4434. Victim's right to privacy; redaction of victim's
30 name; deceased minor's pictures and videos;
31 exceptions; definitions

32 A. The victim has the right at any court proceeding not to testify
33 regarding any identifying or locating information unless the victim
34 consents or the court orders disclosure on finding that a compelling need
35 for the information exists. A court proceeding on the motion shall be in
36 camera.

37 B. A victim's identifying and locating information that is
38 obtained, compiled or reported by a law enforcement agency or prosecution
39 agency shall be redacted by the originating agency and prosecution
40 agencies from records pertaining to the criminal case involving the
41 victim, including discovery disclosed to the defendant, the defendant's
42 attorney or any of the attorney's staff.

43 C. AUTOPSY PHOTOGRAPHS, VIDEO RECORDINGS AND DIGITAL IMAGES
44 DEPICTING THE BODY OF A DECEASED MINOR ARE CONFIDENTIAL, AND THE MINOR
45 VICTIM'S LAWFUL REPRESENTATIVE, PARENT OR LEGAL GUARDIAN HAS A RIGHT TO
46 NOT HAVE THE IMAGE OR RECORDING DISCLOSED TO ANYONE EXCEPT AS SPECIFICALLY
47 PROVIDED BY LAW OR COURT RULE.

48 ~~C.~~ D. Subsection B of this section does not apply to:

1 1. The victim's name except, if the victim is a minor, the victim's
2 name may be redacted from public records pertaining to the crime if the
3 countervailing interests of confidentiality, privacy, the rights of the
4 minor or the best interests of this state outweigh the public interest in
5 disclosure.

6 2. Any records that are transmitted between law enforcement
7 ~~AGENCIES~~ and prosecution agencies or a court.

8 3. Any records if the victim or, if the victim is a minor, the
9 victim's ~~LAWFUL~~ representative as designated under section 13-4403 has
10 consented to the release of the information.

11 4. The general location at which the reported crime occurred.

12 5. The victim's address, if the victim's address appears in any
13 body-worn camera footage, photographs or other visual or audio depictions
14 and there is evidence that the defendant knows the victim's address
15 because of a relationship set forth in section 13-3601, subsection A.

16 ~~D.~~ E. Notwithstanding subsections A and B of this section, a court
17 may order the victim's identifying and locating information to be
18 disclosed in a specific case if it is necessary to protect the defendant's
19 constitutional rights or when the information is not reasonably able to be
20 redacted because of undue burden or expense. Before the court discloses
21 the information, the victim must be notified and has the right to be heard
22 by the court. If the disclosure is made to the defendant's attorney, the
23 defendant's attorney may not disclose the information to any person other
24 than the attorney's staff and a designated investigator. The defendant's
25 attorney may not provide the disclosed information to the defendant
26 without specific authorization from the court.

27 ~~E.~~ F. On the request of a victim, the victim's name that is
28 obtained, compiled or reported by a law enforcement agency or prosecution
29 agency may be redacted by the originating agency and prosecution agencies
30 from records that pertain to the criminal case involving the victim and
31 that are released pursuant to a public records request if the agency
32 reasonably expects that the release of the victim's name will result in
33 harassment of the victim, threats to the victim's safety or witness
34 tampering.

35 ~~F.~~ G. Subsection ~~E~~ F of this section does not apply to any of the
36 following:

37 1. Any record that is transmitted between law enforcement agencies
38 and prosecution agencies or a court or that is disclosed to the defendant,
39 the defendant's attorney or any of the attorney's staff.

40 2. Any record regarding a victim who is deceased.

41 3. Any record if the victim or, if the victim is a minor or
42 vulnerable adult as defined in section 13-3623, the victim's ~~LAWFUL~~
43 representative as designated under section 8-384 or 13-4403, ~~has~~
44 consented to the release of the information.

45 4. Any record that a court of competent jurisdiction has ordered to
46 be disclosed or ~~FOR WHICH~~ a rule of procedure requires the release ~~of a~~
47 ~~record~~ to a party.

48 5. Any record if the law enforcement agency or prosecution agency
49 has received a notice of final disposition in the criminal case.

1 ~~H.~~ H. For the purposes of this section:

2 1. "Identifying information" includes a victim's date of birth,
3 social security number and official state or government issued driver
4 license or identification number.

5 2. "Locating information" includes the victim's address, telephone
6 number, email address and place of employment.

7 Sec. 3. Section 39-121.04, Arizona Revised Statutes, is amended to
8 read:

9 39-121.04. Public access to law enforcement records depicting
10 certain witnesses or crime victims; victim
11 rights; applicability

12 A. In a special action brought pursuant to this article for the
13 release of any record created or received by or in the possession of a law
14 enforcement AGENCY or prosecution agency that relates to a criminal
15 investigation or prosecution and that visually depicts the image of a
16 witness under eighteen years of age or a victim as defined in section
17 13-4401, the petitioner shall establish that the public's interest in
18 disclosure outweighs the witness's or victim's right to privacy.

19 B. A victim whose image is depicted in a record described in
20 subsection A of this section has the right to be present at and to be
21 heard in any action brought pursuant to this article for the release of
22 records described in subsection A of this section.

23 C. THIS SECTION DOES NOT APPLY TO ANY PHOTOGRAPH, VIDEO RECORDING,
24 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
25 RECORDING, SURVEILLANCE RECORDING OR OTHER VISUAL DEPICTION THAT SHOWS THE
26 BODY OF A DECEASED MINOR OR DEPICTS THE SCENE OF THE DEATH OF A DECEASED
27 MINOR.

28 Sec. 4. Title 39, chapter 1, Arizona Revised Statutes, is amended
29 by adding article 6, to read:

30 ARTICLE 6. RECORDS OF MINOR VICTIMS

31 39-174. Definitions

32 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

33 1. "CHILD ABUSE RECORD" MEANS ANY PHOTOGRAPH, VIDEO RECORDING,
34 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
35 RECORDING, SURVEILLANCE RECORDING, FORENSIC INTERVIEW RECORDING, AUDIO
36 RECORDING, 911 EMERGENCY SERVICE TELEPHONE CALL RECORDING OR CALL
37 TRANSCRIPT OR OTHER VISUAL OR AUDIO DEPICTION THAT SHOWS OR DESCRIBES A
38 MINOR WHO IS THE VICTIM OF CHILD ABUSE AS PRESCRIBED IN SECTION 13-3623 OR
39 THAT IS CREATED DURING A CRIMINAL INVESTIGATION FOR ALLEGED CHILD ABUSE.

40 2. "DEATH SCENE IMAGE" MEANS ANY PHOTOGRAPH, VIDEO RECORDING,
41 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
42 RECORDING, SURVEILLANCE RECORDING OR OTHER VISUAL DEPICTION THAT SHOWS THE
43 BODY OF A DECEASED MINOR OR DEPICTS THE SCENE OF THE DEATH OF A DECEASED
44 MINOR.

45 3. "DECEASED MINOR" MEANS A PERSON WHO IS UNDER EIGHTEEN YEARS OF
46 AGE AT THE TIME OF THE PERSON'S DEATH.

47 4. "EMERGENCY CALL RECORDING" MEANS ANY AUDIO RECORDING OR
48 TRANSCRIPT OF A 911 EMERGENCY SERVICE TELEPHONE CALL OR OTHER EMERGENCY
49 COMMUNICATION THAT RELATES TO A DECEASED MINOR'S DEATH.

1 5. "MONETIZE" MEANS TO SELL, LICENSE, DISTRIBUTE FOR COMPENSATION
2 OR USE AN IMAGE TO GENERATE ADVERTISING REVENUE OR FINANCIAL GAIN.
3 39-175. Deceased minor records; prohibited disclosures;
4 exceptions; violation; classification; civil
5 action; discipline or termination of employees
6 A. THE FOLLOWING RECORDS ARE CONFIDENTIAL AND MAY NOT BE DISCLOSED
7 PURSUANT TO THIS CHAPTER OR ANY OTHER LAW:
8 1. AN IMAGE THAT DEPICTS A DECEASED MINOR.
9 2. ANY LAW ENFORCEMENT BODY-WORN CAMERA RECORDING, DASH CAMERA
10 RECORDING OR OTHER LAW ENFORCEMENT VIDEO RECORDING THAT DEPICTS A DECEASED
11 MINOR OR THE SCENE WHERE THE MINOR'S DEATH OCCURRED.
12 3. ANY EMERGENCY CALL RECORDING.
13 4. ANY PHOTOGRAPH, VIDEO RECORDING OR DIGITAL IMAGE OF ANY PART OF
14 THE BODY OF A DECEASED MINOR THAT IS CREATED DURING A DEATH
15 INVESTIGATION.
16 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A RECORD LISTED IN
17 SUBSECTION A OF THIS SECTION MAY BE DISCLOSED TO THE FOLLOWING:
18 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR UNLESS THE
19 PARENT OR LEGAL GUARDIAN IS THE SUBJECT OF AN INVESTIGATION INVOLVING
20 HOMICIDE OR CHILD ABUSE OF THE DECEASED MINOR.
21 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED
22 MINOR.
23 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR, MEDICAL EXAMINER OR OTHER
24 GOVERNMENT ENTITY AS PART OF AN OFFICIAL INVESTIGATION OR CRIMINAL CASE.
25 4. A PERSON WHO IS AUTHORIZED BY AN ORDER FROM A COURT OF COMPETENT
26 JURISDICTION ON A FINDING OF GOOD CAUSE. IN DETERMINING WHETHER GOOD
27 CAUSE EXISTS, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:
28 (a) THE PRIVACY INTERESTS OF THE DECEASED MINOR'S SURVIVING FAMILY
29 MEMBERS.
30 (b) WHETHER THE DISCLOSURE IS NECESSARY TO EVALUATE THE CONDUCT OF
31 A PUBLIC OFFICIAL OR AGENCY.
32 (c) WHETHER THE DISCLOSURE WILL CAUSE EMOTIONAL HARM OR TRAUMA TO
33 THE DECEASED MINOR'S SURVIVING FAMILY MEMBERS.
34 C. IN A CRIMINAL CASE INVOLVING A DECEASED MINOR, THE PROSECUTOR
35 MAY DISCLOSE THE RECORDS LISTED IN SUBSECTION A OF THIS SECTION TO THE
36 DEFENDANT'S ATTORNEY AS PROVIDED BY LAW AND COURT RULE. THE DEFENDANT'S
37 ATTORNEY MAY NOT FURTHER DISSEMINATE ANY RECORD WITHOUT A COURT ORDER ON A
38 FINDING OF GOOD CAUSE.
39 D. IF A RECORD IS RELEASED PURSUANT TO SUBSECTION B OR C OF THIS
40 SECTION, THE PERSON RECEIVING THE RECORD IS PROHIBITED FROM FURTHER
41 DISSEMINATING THE RECORD.
42 E. THIS SECTION DOES NOT APPLY TO A WRITTEN INCIDENT REPORT,
43 INVESTIGATIVE SUMMARY OR OTHER RECORD THAT DOES NOT CONTAIN A VISUAL
44 DEPICTION OF THE DECEASED MINOR OR AN EMERGENCY CALL RECORDING.
45 F. A PERSON WHO KNOWINGLY RELEASES A RECORD IN VIOLATION OF THIS
46 SECTION IS GUILTY OF A CLASS 1 MISDEMEANOR, EXCEPT THAT IF THE PERSON WHO
47 VIOLATES THIS SECTION IS A GOVERNMENT OFFICIAL OR EMPLOYEE IT IS A CLASS 6
48 FELONY.

1 G. THE PARENT, LEGAL GUARDIAN OR ESTATE OF A DECEASED MINOR MAY
2 BRING A CIVIL ACTION AGAINST ANY PERSON WHO KNOWINGLY RELEASES, PROVIDES
3 OR DISSEMINATES A RECORD IN VIOLATION OF THIS SECTION. IN ANY ACTION
4 UNDER THIS SUBSECTION, THE COURT MAY AWARD THE FOLLOWING:

- 5 1. ACTUAL DAMAGES.
- 6 2. STATUTORY DAMAGES OF AT LEAST \$5,000 AND NOT MORE THAN \$50,000
7 FOR EACH VIOLATION. EACH RECORD THAT IS DISCLOSED OR DISTRIBUTED IN
8 VIOLATION OF THIS SECTION IS A SEPARATE VIOLATION.
- 9 3. REASONABLE ATTORNEY FEES AND COSTS.
- 10 4. INJUNCTIVE RELIEF PROHIBITING FURTHER DISSEMINATION.

11 H. A GOVERNMENT ENTITY MAY DISCIPLINE OR TERMINATE AN EMPLOYEE WHO
12 KNOWINGLY VIOLATES THIS SECTION.

13 39-176. Death scene images; prohibited monetization; civil
14 penalty; exceptions

- 15 A. A PERSON MAY NOT MONETIZE OR PROFIT FROM A DEATH SCENE IMAGE
16 THAT IS OBTAINED PURSUANT TO THIS ARTICLE.
- 17 B. A PERSON WHO VIOLATES THIS SECTION IS SUBJECT TO A CIVIL PENALTY
18 OF \$100,000 FOR EACH VIOLATION.
- 19 C. THIS SECTION DOES NOT APPLY TO A DEATH SCENE IMAGE WHEN THE
20 IMAGE IS EITHER:
 - 21 1. USED IN A CRIMINAL PROSECUTION OR OFFICIAL INVESTIGATION.
 - 22 2. POSSESSED BY THE PARENT, LEGAL GUARDIAN OR ESTATE OF THE
23 DECEASED MINOR.
 - 24 3. DISCLOSED PURSUANT TO A COURT ON A SHOWING OF GOOD CAUSE UNLESS
25 SPECIFICALLY PROHIBITED BY THE COURT.

26 39-177. Child abuse records; prohibited disclosure;
27 exceptions; good cause determination

- 28 A. CHILD ABUSE RECORDS ARE CONFIDENTIAL AND ARE NOT SUBJECT TO
29 DISCLOSURE PURSUANT TO THIS ARTICLE.
- 30 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A CHILD ABUSE
31 RECORD MAY BE DISCLOSED TO THE FOLLOWING:
 - 32 1. THE PARENT OR LEGAL GUARDIAN OF THE MINOR UNLESS THE PARENT OR
33 LEGAL GUARDIAN IS THE SUBJECT OF THE CHILD ABUSE INVESTIGATION OR A
34 HOMICIDE INVESTIGATION.
 - 35 2. THE MINOR'S LEGAL REPRESENTATIVE.
 - 36 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR OR CHILD WELFARE AGENCY FOR
37 THE PURPOSE OF AN INVESTIGATION OR FORMAL PROCEEDING.
 - 38 4. THE DEFENDANT'S ATTORNEY IN A CRIMINAL CASE INVOLVING THE MINOR
39 AS PROVIDED FOR BY LAW AND COURT RULE. ANY RECORDS DISCLOSED TO THE
40 DEFENDANT'S ATTORNEY PURSUANT TO THIS PARAGRAPH MAY NOT BE FURTHER
41 DISSEMINATED WITHOUT A COURT ORDER ON A FINDING OF GOOD CAUSE.
 - 42 5. A PERSON WHO IS AUTHORIZED BY AN ORDER FROM A COURT OF COMPETENT
43 JURISDICTION ON A FINDING OF GOOD CAUSE. IN DETERMINING WHETHER GOOD
44 CAUSE EXISTS, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:
 - 45 (a) THE PRIVACY AND SAFETY INTERESTS OF THE MINOR.
 - 46 (b) WHETHER THE DISCLOSURE IS NECESSARY TO EVALUATE THE CONDUCT OF
47 A PUBLIC OFFICIAL OR AGENCY.
 - 48 (c) WHETHER THE DISCLOSURE WILL CAUSE PSYCHOLOGICAL HARM OR TRAUMA
49 TO THE MINOR.

1 C. THIS SECTION DOES NOT PROHIBIT THE DISCLOSURE OF A WRITTEN
2 REPORT, AN INVESTIGATIVE SUMMARY OR STATISTICAL INFORMATION THAT DOES NOT
3 CONTAIN A VISUAL DEPICTION OR AUDIO RECORDING OR TRANSCRIPT OF THE MINOR
4 VICTIM.

5 D. A PERSON WHO RECEIVES A CHILD ABUSE RECORD PURSUANT TO
6 SUBSECTION B OF THIS SECTION MAY NOT FURTHER DISSEMINATE THE RECORD.

7 39-178. Death scene images; deceased minor and child abuse
8 records; civil action; enforcement; investigation
9 authority

10 A. THE ATTORNEY GENERAL, THE COUNTY ATTORNEY IN THE COUNTY WHERE
11 THE RECORD ORIGINATED OR THE CITY OR TOWN ATTORNEY IN THE CITY OR TOWN
12 WHERE THE RECORD ORIGINATED MAY BRING A CIVIL ACTION TO ENFORCE THIS
13 ARTICLE. IN ANY ACTION UNDER THIS ARTICLE, THE COURT MAY ORDER ALL OF THE
14 FOLLOWING:

15 1. THE IMMEDIATE REMOVAL OF THE DECEASED MINOR RECORD, DEATH SCENE
16 IMAGE OR CHILD ABUSE RECORD FROM ANY PLATFORM OR PUBLICATION THAT IS
17 SUBJECT TO THE COURT'S JURISDICTION.

18 2. THE IMMEDIATE DESTRUCTION OF ANY DECEASED MINOR RECORD, DEATH
19 SCENE IMAGE OR CHILD ABUSE RECORD THAT IS IN THE PERSON'S POSSESSION.

20 3. INJUNCTIVE RELIEF TO PREVENT ANY FURTHER MONETIZATION OR
21 DISTRIBUTION OF THE DECEASED MINOR RECORD, DEATH SCENE IMAGE OR CHILD
22 ABUSE RECORD.

23 B. THE ATTORNEY GENERAL, THE COUNTY ATTORNEY OR THE CITY OR TOWN
24 ATTORNEY WHO HAS THE AUTHORITY TO FILE A CIVIL ACTION PURSUANT TO THIS
25 SECTION HAS THE AUTHORITY TO INVESTIGATE ANY ALLEGED VIOLATION OF THIS
26 ARTICLE, INCLUDING THE POWER TO SUBPOENA RECORDS OR EXAMINE A PERSON UNDER
27 OATH.

28 Sec. 5. Emergency

29 This act is an emergency measure that is necessary to preserve the
30 public peace, health or safety and is operative immediately as provided by
31 law."

32 Amend title to conform

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